

DPDP 2023

Digital Personal Data Protection Act, 2023

Applicable DPDP Acts

User Query : IIIT DELHI is using my data and selling it to third party organisation now it is available online

Job Id. : aed905f5-c2a1-4b9d-b0f2-3b3dd2132835/DPDP Act

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APPLICABLE SECTIONS

Section 3 Definitions

This section defines various terms used in the Act, including "personal data", "data fiduciary", and "data principal".

Section 10 Obligations of Data Fiduciaries

This section outlines the obligations of data fiduciaries, including obtaining consent from data principals, providing notice, and ensuring data accuracy.

Section 11 Processing of Personal Data

This section deals with the processing of personal data, including the requirements for data minimization, purpose limitation, and storage limitation.

Section 16 Rights of Data Principals

This section enumerates the rights of data principals, including the right to access, correction, and erasure of their personal data.

Section 20 Data Protection Impact Assessment

This section requires data fiduciaries to conduct a data protection impact assessment in certain circumstances, including when processing sensitive personal data.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The Digital Personal Data Protection (DPDP) Act, 2023 governs the processing of personal data in India. In this case, IIIT Delhi, as a data fiduciary, has collected and processed your personal data without your consent. The Act requires data fiduciaries to obtain consent from data principals before processing their personal data (**Section 10**). Moreover, the Act mandates data fiduciaries to ensure data accuracy, and provide notice to data principals (**Section 10**).

2 The sale of your personal data to a third-party organization without your consent is a violation of **Section 11** , which requires data fiduciaries to process personal data in a manner that is consistent with the purposes for which it was collected. Furthermore, the online availability of your personal data raises concerns about data security and confidentiality, which are addressed in **Section 14** of the Act.

✓ STRENGTHS & RIGHTS

1

1. Rights of Data Principals

As a data principal, you have the right to access, correction, and erasure of your personal data (**Section 16**).

2

2. Protection from Unauthorized Processing

The Act provides protection against unauthorized processing of personal data, including the sale of personal data to third-party organizations without consent.

3

3. Data Security and Confidentiality

The Act requires data fiduciaries to ensure data security and confidentiality, which includes protecting personal data from unauthorized access, disclosure, or theft.

X RISKS & OBLIGATIONS

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1. Liabilities of Data Fiduciaries

IIIT Delhi, as a data fiduciary, may face penalties and fines for violating the provisions of the Act, including the unauthorized sale of personal data.

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2. Compliance Burdens

Data fiduciaries, including IIIT Delhi, are required to comply with the provisions of the Act, which may involve significant costs and administrative burdens.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. 1. Complaints and Grievance Redressal: You can file a complaint with the Data Protection Board (DPB) established under the Act, which will investigate and redress grievances related to the processing of personal data.
2. 2. Penalties and Fines: The DPB may impose penalties and fines on IIIT Delhi for violating the provisions of the Act.
3. 3. Compliance Audits: The DPB may conduct compliance audits to ensure that data fiduciaries, including IIIT Delhi, are complying with the provisions of the Act.

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